



MEMORANDUM OF UNDERSTANDING

Between

ODOP Cell

and

Lulu India Shopping Mall Pvt. Ltd.



This Memorandum of Understanding (MOU) is made on **11/07/2022**, at Lucknow, Uttar Pradesh.

BETWEEN

(1). ODOP Cell, a nodal body for the implementation of the ODOP Program, under the Directorate of Industries, Government of U.P., and having its office at First Floor, Niryat Bhawan, 8 Cantt. Road, Qaisarbagh, Lucknow.

AND

(2). Lulu India Shopping Mall Pvt. Ltd., having its registered office at 34/1000, N.H. 47, Lulu Shopping Mall, Edappally, Kochi, Kerala, India ("Counterparty").

ODOP Cell and Counterparty may hereinafter be referred to as a "Party" and collectively, the "Parties".

1. **Objective:** To promote ODOP Products through a non-financial collaboration with Lulu India Shopping Mall Pvt. Ltd and to enhance the branding & marketing opportunity for ODOP products.

2. POTENTIAL COLLABORATION

2.1 Lulu India Shopping Mall Pvt. Ltd.

- 2.1.1. Lulu India Shopping Mall shall provide space / floor space / shelf space to the shortlisted ODOP products as per the quantity procured from such Vendors, Associations or FPOs in its Hypermarket in Lucknow.
- 2.1.2. As such, the Lulu India Shopping Mall as per its existing business processes / business practices and business interest, shall independently select / shortlist notified ODOP products and engage with their Vendors, Associations or FPOs independently.
- 2.1.3. Lulu India Shopping Mall shall offer curated schemes or offers (example- pricing and other benefits), tailored for the ODOP product aligned Vendors, Associations or FPOs, to sell their products through its mall.
- 2.1.4. The Lulu India Shopping Mall shall provide appropriate branding to the ODOP Programme in and around such spaces/ floor spaces/shelf spaces so allotted to the displayed ODOP products under different product categories.
- 2.1.5. Lulu India Shopping Mall shall make reasonable efforts to participate in ODOP State / Regional Summits or any other media event facilitated and advised by the ODOP Cell.
- 2.1.6. Lulu India Shopping Mall shall make reasonable efforts to invite ODOP Cell and ODOP product Vendors, Associations, FPOs (relevant) to appropriate events & forums- National & International, to enhance exposure and offer additional visibility.
- 2.1.7. Lulu India Shopping Mall shall offer relevant ODOP branding and success stories of the MoU on its various social media platforms and through other appropriate media, as per the mutual understanding of both the parties.

2.2. ODOP Cell

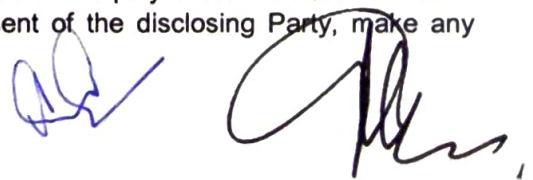
- 2.2.1. ODOP Cell through, District Industries Enterprise & Promotion Centre (DIEPC) offices across the districts of the state shall share the contact details of Vendors, Associations or FPOs interested in collaborating/selling through Lulu India Shopping Mall.
 - 2.2.2. ODOP Cell will not have any say, in any such selection of ODOP products, ODOP product quality & quantity and ODOP product Vendors, Associations or FPOs by the Lulu India Shopping Mall India.
 - 2.2.3. ODOP Cell shall neither pay any fee directly or indirectly to Lulu India Shopping Mall nor ODOP Cell shall be liable for any profit or loss arising out of any collaboration between Lulu India Shopping Mall and ODOP product aligned Vendors, Association or FPOs
 - 2.2.4. ODOP Cell shall not be legally liable for any repercussion arising out of a fallout of an agreement or agreements between any Vendor/s, Associations or FPOs and Lulu India Shopping Mall.
3. Both parties to have quarterly/half yearly meetings to review the success of such association between Lulu India Shopping Mall and Vendors, Associations, FPOs. This shall not preclude any other meetings, as desired so by the parties, mutually.
 4. Lulu India Shopping Mall shall manage the adequate publicity of the news of MoU Signing event as per mutual understanding of the parties.

5. NON-BINDING

The Parties acknowledge and agree that, save for this Clause, Clauses 6 (Confidentiality), 7 (Publicity), 8 (Intellectual Property), 9 (Term and Termination), 10 (Force Majeure) 11 (Counterparts) and 12 (Third Party Rights), this MoU is intended to be legally binding & sets out the understandings reached by the Parties with respect to the Collaboration set forth in Clause 1 (Potential Collaboration). The understandings reached by the Parties in this MoU shall comprise only a general scope of rights and obligations of each Party and the specific scope, initiatives, terms and conditions, and deliverables of the collaboration shall be further discussed, agreed and confirmed by the Parties by way of definitive or supplemental agreement(s) superseding this MoU.

6. CONFIDENTIALITY

"**Confidential Information**" means the terms of this MoU and all information concerning the Parties or any Party to which another Party is provided access by virtue of its activities as a result of this MoU. Confidential Information does not include information that has been publicly disseminated in writing by the owner, in which the receiving Party can show it knew prior to disclosure, or which was rightfully received by a Party from a third Party without restriction. Confidential Information acquired hereunder by a Party will be treated as proprietary information of the disclosing Party and shall not be used for any purpose other than the collaborations between the Parties or disclosed to any third Party, except such Party's professional advisers, affiliates, consultants, or its employees on a "need to know" basis. No Party shall, without the prior written consent of the disclosing Party, make any



public announcement or issue any press release disclosing Confidential Information, provided that any Party may make any disclosure required, in the opinion of its legal counsel, by applicable laws or regulations.

7. PUBLICITY

The Parties agree that, unless expressly agreed to and approved in advance by both Parties, no Party shall make any public announcements or press releases with respect to the relationship or collaboration between the Parties created by this MoU.

8. INTELLECTUAL PROPERTY

Nothing contained in this MoU shall be construed as granting or conferring, whether by sale, license or otherwise, to a Party (or any of its representatives) any right, title or interest in or to Intellectual Property Rights of the other Party or its affiliates, related parties or licensors. For the purpose of this MoU, "Intellectual Property Rights" shall mean all rights in inventions, patents, trademarks, service marks, trade names, copyrights, data rights, database rights, design rights, domain names, trade secrets, know-how and other intellectual property rights (whether registered or unregistered) and all applications for any of them, anywhere in the world.

Each Party grants to the other a nonexclusive, non-transferable, royalty-free right to display/usage of such Party's respective trademarks, service marks, and logos (the "Trademarks"), for the purposes of this MoU only. Neither Party shall acquire any right of ownership to any copyrights, patents, trade secrets, trademarks or other intellectual property of the other Party. On termination of this MoU, each Party shall cease using the Trademarks of the other Party.

9. TERM AND TERMINATION

- 9.1. The Parties agree that this MoU can be terminated on the ground of non-execution by any Party or by mutual consent.
- 9.2. Subject to earlier termination in accordance with above mentioned clauses, this MoU shall take effect from the date first above written and remain valid for (a) one (1) year, or (b) until the date the Parties have entered into the relevant definitive agreement(s) which supersedes this MoU.

10. FORCE MAJEURE

- 10.1. For the purpose of this MoU "force Majeure" means an event which is beyond the reasonable control of a Party, either ODOP Cell or Lulu India Shopping Mall and which makes a party's performance regarding its obligations hereunder impossible or so impracticable as reasonably to be considered impossible in the circumstances and include, but is not limited to war, riots, civil disorder, earthquakes, fire, explosions, storm, flood, and other adverse weather conditions, strikes, lock-outs, or other similar actions, political uncertainties, change in priorities in the National and State missions, which is not within the power of the Party invoking "force majeure" to prevent any other action by the other Party.
- 10.2. If any Party finds itself incapable to perform its duty due to Force Majeure, it will give notice to other Party that Force Majeure event has arisen.



- 10.3. The failure of any Party, either ODOP Cell or Lulu India Shopping Mall to fulfil any of its obligations hereunder shall not be considered to be the breach of or default under this MoU in so far as such inability arises from an event of Force Majeure provided that the Party affected by such event should take all reasonable precautions and due care for reasonably carrying out the terms and condition of this MoU.
- 10.4. In the event of a Force Majeure, ODOP Cell and Lulu India Shopping Mall shall consult each other with a view to agreeing on appropriate measures to be taken under the circumstances.

11. **COUNTERPARTS**

This MoU may be signed in counterparts, each of which shall be deemed an original document and all of which shall constitute one and the same instrument. This MoU may also be signed and transmitted by e-mail, as a scanned image or PDF, with such signature to be treated as an original and the document transmitted to be considered to have the same binding effect as an original signature on an original document.

12. **NO THIRD-PARTY RIGHTS**

Nothing in this MoU, express or implied, is intended to confer upon any person, other than the Parties hereto and their respective successors and assigns, any rights or remedies under or by reason of this MoU, except that the Parties agree that in the event of any enforcement of its rights under this MoU by ODOP Cell, such action may be instituted by ODOP Cell.

IN WITNESS whereof, the Parties below have executed this MoU on the aforementioned day and year.

Signed for and on behalf of

Signed for and on behalf of



Shri Navneet Sehgal, IAS
Additional Chief Secretary (ACS).,
MSME & Export Promotion,
Uttar Pradesh



Shri. Ananth A. V.
Director,
Lulu India Shopping Mall Pvt. Ltd.